

The Bihar Civil Service (Executive Branch) and the Bihar Junior Civil Service (Recruitment) Rules, 1951

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State of Bihar - Act

The Bihar Civil Service (Executive Branch) and the Bihar Junior Civil Service (Recruitment) Rules, 1951

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The Bihar Civil Service (Executive Branch) and the Bihar Junior Civil Service (Recruitment) Rules, 1951

Rule

THE-BIHAR-CIVIL-SERVICE-EXECUTIVE-BRANCH-AND-THE-BIHAR-JUNIOR-CIVIL-SERVICE-RECRUITMENT-RULES-1951 of 1951

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The Bihar Civil Service (Executive Branch) and the Bihar Junior Civil Service (Recruitment) Rules, 1951

Published vide Notification No. G.S.R. 28, dated the 17th November, 1995 (Published in Bihar Gazette (Extraordinary) dated 17.11.95)

[G.S.R. 28, dated the 17th November, 1995 [Published in Bihar Gazette (Extraordinary) dated 17.11.95]. - In exercise of the powers conferred by Proviso to Article 309 of the Constitution of India, the Governor of Bihar is pleased to make the following amendment in the Bihar Civil Service (Executive Branch) and the Bihar Junior Civil Service (Recruitment) Rules, 1951, which shall deem to have come into force with effect from 23rd January, 1992.]

Part I

1.

(a) Short title and commencement.

- These rules may be called the Bihar Civil Service (Executive Branch) and the Bihar Junior Civil Service (Recruitment) Rules, 1951, and shall take effect from the date of this notification.

(b)

Definitions. - In these rules, unless there is anything repugnant in the subject or context-

(i)

"Commission" means the Bihar Public Service Commission;

(ii)

"Government" means the Government of Bihar;

(iii)

"Governor" means the Governor of Bihar;

(iv)

"Scheduled Castes" means the castes specified in Part II of the Constitution (Scheduled Castes) Order, 1950; and

(v)

"Scheduled Tribes" means the tribes specified in Part II of the Constitution (Scheduled Tribes) Order, 1950.

2.

The Bihar Civil Service (Executive Branch) and the Bihar Junior Civil Service shall be recruited -

(a)

by direct recruitment in accordance with the rules in Part II and/or

(b)

by direct recruitment in accordance with the rules in Part II-A and/or

(c)

by promotion or transfer of officers already in Government service in accordance with the rules in Part III.

3.

The Governor shall decide in each year the number of vacancies in each of the services to be filled in that year by direct recruitment and/or by promotion respectively:

Provided that the number of vacancies to be filled by promotion in the Bihar Civil Service (Executive Branch) in any one year shall not, unless the Governor is satisfied that there is not a sufficient number of officers fit for promotion, be less than half the total number of vacancies to be filled in any such year.

Part II ? Direct Recruitment by Competitive Examination

4.

The Commission shall announce in each year in such manner as they think fit, the number of vacancies in each service to be filled by direct appointment on the result of a competitive examination and shall invite applications, from candidates eligible for appointment under Rules 6 and 7. The competitive examination will be conducted by the Commission and will normally be held between the months of November and February unless otherwise notified.

5.

The Commission fix a limit in any particular year as to the number of eligible candidates to be admitted to the examination and if the number of candidates exceeds the limit fixed, the Commission may make a preliminary selection of candidates to be admitted in the written examination on the basis of preliminary examination." [G.S.R. 28, dated the 17th November, 1995 [Published in Bihar Gazette (extra-Ordinary) dated 17.11.95].

6.

(1)

A candidate may either be a male or female, and-

(a)

be under 25 years and over 22 years of age on the 1st day of August last preceding the month in which the examination is held :

Provided that-

(i)

in the case of candidates belonging to the Scheduled Castes or the Scheduled Tribes, the upper age-limit shall be under

30 years :

(ii)

in the case of candidates who are bona fide displaced persons from Pakistan, there shall be no upper age-limit, and [but no candidate shall be allowed to avail, in consecutive year, only of the same number of chances to appear at the examination as permissible to candidates to whom the normal age-limits apply"]

[Added by Notification No. A-32104 dated 21.3.1957.]

and

(iii)

in the case of "Political Sufferes" the upper age-limit shall be extended up to a maximum period of five years :

[Provided also that no candidate who does not belong to a Scheduled Caste or a Scheduled Tribe shall be allowed to take more than four chances at the examination :]

[Added by Notification No. A-2-206/59. T44 dated 18.11.1959.]

[Provided also that, for the first examination to be held after 1st August, 1959, a candidate belonging to Scheduled Castes or Scheduled Tribes must be under 36 years of age on that date and any other candidate must be under 31 years of age on that date.]

[Added by Notification No. A-2-206/59. T44 dated 18.11.1959.]

Note. - (1) For a list of the Scheduled Castes and Scheduled Tribes in Bihar, see Appendix A to these rules.

(2)

For persons falling under the category of "Political Sufferers", see Appendix-B to these rules.

(b)

[must hold a degree in Arts, Science, Commerce, Agriculture, Engineering, Medicine or Veterinary Science of any statutory university or possess other qualifications which the Governor may declare from time to time as equivalent to the said degrees.]

[Substituted by G.S.R. 99 dated 16-9-1972.]

[Note.

[Substituted by No. III/PSC-5018/59-A-9452, dated 9.7.1960.]

- Persons who hold posts in Government service in a temporary or officiating capacity or on probation are eligible to offer themselves for the examination provided they possess the educational and other equal qualifications, prescribed in the rule. Persons holding Non-Gazetted posts substantively, whether technical or non-technical, are also eligible to offer themselves for the examination provided they possess the requisite qualifications. This concession, will not, however apply to such technical persons who have been trained at the expense of Government or those who are by contract bound to serve in a technical post for a specific period.

Applications for Government servants who are eligible under the rules should be submitted through the authority empowered to forward the application under the Bihar Government Servant's Applications or Posts Rules, 1956-"]

(2)

[A non-gazetted non-technical Government servant ora temporary nontechnical Gazetted officer appointed against a permanent or temporary post under the Government shall be eligible to appear in the examination if he/she possesses the requisite qualification, has rendered at least three years of continuous service under the State Government and is under 35 years of age (under 40 years of age in the case of candidates belonging to the Scheduled Castes and Scheduled Tribes), on the first day of August, last preceding the month in which the examination is held. Such a Government servant may submit his/her application in the prescribed form and in the manner prescribed in the rules through the Head of his/her Department to the Secretary to the Commission but he/she shall not be entitled to sit at more than three Examinations. Such a Government servant can, however, send an advance copy of his/her application direct, to the Commission. The Commission may, at the time of interviewing such a candidate call for his/her service records. If such a candidate is actually appointed to the Bihar Civil Service (Executive Branch) or to the Bihar Junior Civil Service, his/her previous service under the Government shall not be taken into account for the purposes of determining his/her seniority in the new cadre.]

[Added by Notification No. III/ARI-401T/60-A/14218, dated 30-10-1961.]

Explanation. - The term 'technical' has been used in its ordinary etymological sense and in case of any doubt, a reference should be made to the Government in the Appointment Department for clarification.

Note. - (1) The three chances for which a candidate is eligible under this sub-rule shall be in addition to those which

he/she can avail of before attaining the age of 25 years (30 years in case of Scheduled Castes and Scheduled Tribes.)

(2)

The Head of Department concerned shall make a note of forwarding such applications in the Service Book of the Government servant concerned and may also call upon the Government servant to submit a declaration of the number of chances which he/she has availed after attaining the age of 25 years (30 years in case of Scheduled Castes and Scheduled Tribes),

6A.

[

[Added by Notification No. IM/1022/55/1568-A.R., dated 8.8.1955.]

(i)

No male candidate shall be eligible for appointment if he had married before attaining the age of [22 years] : Provided that this restriction shall not apply to persons who had married on or before the 31st July, 1955.

(ii)

After appointment a person shall not marry until he reaches the age of [22 years]

[Substituted for 23 years by Notification No. A2-406/59-44, dated 18.11.1959.]

, except with the permission of Government, and if he marries before the age of [22 years]

[Substituted for 23 years by Notification No. A2-406/59-44, dated 18.11.1959.]

without such permission, his service may be terminated.]

7.

(a)

A candidate must be of sound health, good physique and active habits and free from any physical defect likely to interfere with the efficient performance of the duties of a member of the Bihar Civil Service (Executive Branch) and the Bihar Junior Civil Service. A candidate who is found after examination by a Medical Board not to satisfy these requirements will not be selected for appointment.

(b)

A candidate must satisfy the Public Service Commission that his character is such as to qualify him for employment in the service.

8.

A candidate shall apply to be admitted to the examination in his own hand writing in the prescribed form to the Secretary to the Public Service Commission, not later than such date as may be notified by the Commission in this behalf in each year. The prescribed form and a copy of these rules are obtainable from the Secretary to the Public Service Commission.

9.

With his application a candidate must submit-

(i)

evidence that he holds one of the educational qualifications referred to in rule 6 (b);

(ii)

certificate of character and conduct from the heads of all the colleges at which he has studied since he passed the Matriculation examination;

(iii)

the name of two persons, as reference, who know him in private life and are not his near relatives. A candidate must not file written testimonials of such persons and the reference furnished by him should not include College Professors or Principals unless they know the candidate at home;

(iv)

a certificate from any Registered Medical practitioner in the prescribed form which may be obtained from the Secretary to the Commission;

(v)

evidence of age, which should ordinarily be a copy of the Matriculation Certificate or its equivalent;

(vi)

if he claims to be domiciled in the State, a certificate of domicile granted by the District Officer of the District in which he claims to be domiciled. -

Note. - The certificate and other documents required should be true copies of the originals bearing on each certificate a certificate from a Gazetted Officer stating that he has seen the original and the copy is a true copy. The candidates may be required to produce the original certificates before the Commission at the time of the viva voce test.

Supplementary Instructions

The age of a candidate as recorded in his Matriculation Certificate will be regarded as correct unless there is proof to the contrary. If a candidate will claim that his age is other than as so recorded, he must submit with his application the evidence on which he bases his claim. In such a case, he will be required to furnish, among other evidence satisfactory explanation, of the circumstances in which a wrong age was recorded on his form of application for permission to appear at the Matriculation Examination. He will also be required to submit a statement of any attempts made by him to have the University records amended and of the results of such attempts.

10.

Except under the special orders of Government, preference will be given to a candidate who is either a native of the State or a subject of the Indian Union domiciled in the State.

A - To the Bihar Public Service Commission

11.

[

[Substituted by Notification No. A-3335 dated the 25.3.1957.]

A consolidated examination fee of Rs. 13.75 (in case of candidates belonging to Scheduled Castes and the Scheduled Tribes) when they first submit their application:]

Provided that Commission may, at their discretion, remit the prescribed fee in cases of bona fide displaced persons from Pakistan who are not in a position to pay the prescribed fee.

B - To the Medical Board

Rs. 16 (Rupees sixteen) only in cash at the time of examination by a Medical Board.

Note 1. - The examination fee shall be payable by means of a Treasury challan to be obtained only from any treasury in Bihar or crossed Indian Postal Order, payable to the Secretary, Bihar Public Service Commission. The fee paid by means of treasury challan should be credited to the Head [XXI]

[See now new head.]

- Miscellaneous Departments-Examination Fees realised by the Bihar Public Service Commission". The fee must not be sent by cheque on banks or in cash.

12.

(1)

No candidate will be admitted to the examination unless he/she holds a certificate of admission from the Commission.

(2)

Candidates must see that they are eligible and must decide definitely to apply before depositing the fees in the treasury. In order to prevent disappointment, candidates are advised to have themselves examined by a Government medical officer of and above the rank of a Civil Assistant Surgeon before applying for admission to the examination. No claim for refund of any of this fees will ordinarily be entertained except to the extent stated in Appendix C nor can they be held in reserve for any other examination or selection.

13.

Notwithstanding anything contained in the foregoing provisions of these rules, the Commission may require a candidate to furnish any such additional proof on any point as to his/her suitability as the Commission may deem necessary.

14.

Subject to the provision of these rules, the decision of the Commission as to the eligibility or otherwise for admission to the examination shall be final.

15.

The examination shall be held according to the syllabus specified in Appendix D to these rules which are liable to alteration from time to time by the Commission with the prior approval of the State Government.

15A.

[

[Added by Notification No. 3335 dated 25.3.1957.]

If any candidate is found guilty of-

- (i)
resorting to any irregular or improper means for obtaining admission to the examination; or
- (ii)
impersonating another candidate or being impersonated by any person at the written or viva voce examination ; or
- (iii)
submitting fabricated document or documents which have been tampered with; or
- (iv)
making statements which are incorrect or false, or suppressing material information;
- (v)
communicating with any person for the purpose of getting help or for aiding any other candidate; or
- (vi)
using any other unfair means in the examination hall; or
- (vii)
unruly behaviour in the examination hall or violating any instruction issued by the Commission;
he may be expelled from the examination hall by the Commission by any person authorised by them in this behalf. In such cases, the Commission may also invalidate his answer book or deduct such marks as they consider fit and in addition to rendering himself liable to criminal prosecution, the candidate may be debarred either permanently or for a specified period-

(a)
by the Commission from admission to any examination or appearance at any interview held by the Commission for selection of candidates; and

(b)
by the State Government from employment under Government.]

16.

[
[Substituted by Notification No. 3335 dated 25.3.1957.]

(a)
The Commission shall have discretion to fix the qualifying marks in any or all the subjects at the written examination.

(b)
The minimum qualifying marks for candidates belonging to the Scheduled Castes and the Scheduled Tribes shall not be higher than 35% for the Bihar Civil Service (Executive Branch), and 30% for the Bihar Junior Civil Service unless the number of such candidates qualifying at the written test according to the standards applied for other candidates is considerably in excess of the number of candidates required to fill all the vacancies reserved for the Scheduled Castes and Scheduled Tribes:

Provided that in determining the suitability of a particular candidate for appointment, the total marks obtained at the written examination and not the marks obtained in any particular subject shall be taken into consideration.

(c)
There shall be no qualifying marks for the viva voce test.]

17.

On the basis of the marks obtained at the written examination, the Commission shall arrange for a viva voce test of the candidates who have qualified at the written examination according to Rule 16 (a) or (b):

Provided that in exceptional circumstances and with the prior approval of Government, the Commission may, at their discretion, admit candidates of the Scheduled Castes and Scheduled Tribes to the viva voce test even though they may not have obtained the minimum qualifying marks at the written test prescribed in Clause (a) or (b) of Rule 16.

18.

The marks obtained at the viva voce test shall be added to the marks obtained at the written examination. The names of candidates will then be arranged by the Commission in order of merit. From the list of candidates so arranged, the Commission shall nominate such number of candidates for each service as may have been fixed by the Governor. This list shall be submitted to the Governor by such date in each year as the Governor may fix.

19.

The Commission shall, while submitting their recommendations under Rule 18 consider the claims of qualified

candidates belonging to the Scheduled Castes and the Scheduled Tribes. If the list of nominees submitted under Rule 18 does not contain an adequate number of candidates belonging to the Scheduled Castes and the Scheduled Tribes who may be appointed to the vacancies reserved for them in these services, the Commission shall submit a supplementary list nominating a sufficient number of such candidates as in their opinion attain the required standard of qualifications and are in all respects suitable for appointment.

20.

The Commission reserve the right to recommend a successful candidate for any of the services for which he is considered suitable. Success at the examinations confers no right for appointment unless Government is satisfied after such enquiry as may be considered necessary, that the candidate is suitable in all respects for appointment to the public service.

21.

Candidates selected for written or viva voce test will present themselves at their own expense at a time and place of which they will be informed in due course.

22.

A consolidated result of the examination will be prepared by the Commission and a copy of the marks obtained both at the written and the viva voce tests may be supplied immediately to each candidate, soon after the results are compiled and the list referred to in Rule 18 is submitted to the Governor.

Part II ? A Direct Recruitment of Persons with Zamindari Experience

22A.

The Commission shall announce in such a manner as they think fit the number of vacancies in each service to be filled by direct recruitment in accordance with the rules in this Part, and shall invite applications from candidates eligible for appointment under this rule.

22B.

A candidate may either be a male or a female and must-

(a)

be under 40 years and over 25 years of age on the 1st day of August last preceding the month in which applications are invited ;

(b)

possess the educational qualifications laid down in Rule 6 (6) of Part II;

(c)

possess at least six years' experience of managing a zamindari or tenure.

22C.

Rules 7 and 21 in Part II shall apply also to candidates eligible under this part.

22D.

Applications from candidates eligible under this Part shall be sent so as to reach the Commission not later than such date as may be prescribed by the Commission in this behalf. Applications shall be sent direct to the Commission but each candidate shall furnish to the Collector of his district a copy of the application submitted by him to the Commission.

22E.

(1)

With his application a candidate must remit to the Commission a sum of Rs. 50 (Rupees fifty) only as application fee :
Provided that candidates belonging to the Scheduled Castes and the Scheduled Tribes shall be required to remit a sum of Rs. 12.50 paise (Rupees twelve and fifty paise) only.

(2)

Out of the fee remitted to the Commission under sub-rule (1) a sum of Rs. 45 (Rupees forty-five) only or in the case of candidates belonging to the Scheduled Castes and the Scheduled Tribes, a sum of Rs. 11.25 paise (Rupees eleven and twenty-five paise) only, shall be refunded by the Commission if after an enquiry by the Collector of his District or by the Commission, the candidate is found to be eligible to apply under part, but not otherwise.

22F.

The Commission shall hold a written test consisting of one paper of 300 marks on general knowledge, method and power of expression (either in English or in Hindi) and knowledge of zamindari affairs. The Commission shall also hold a viva voce test which shall carry a maximum of 200 marks. Both the written test and the viva voce test shall be designed

to test not the candidates' academic knowledge, but his understanding of Zamindari affairs and his aptitude for the kind of work that an Anchal Adhikari-cum-block Development Officer would be required to do.

22G.

The maximum qualifying marks for the written test shall be as follows:-

For candidates belonging to the Scheduled Castes and the Scheduled Tribes.

For other candidates.

Bihar Civil Service (Executive Branch)

40 per cent:

45 per cent,

Junior Civil Service ...

35 per cent:

40 per cent.

There shall be no qualifying marks for the viva voce test.

22H.

After holding the written test, viva voce test, the Commission shall submit their recommendations to the Governor, arranging the names of candidates considered suitable by them for each service in order of merit.

Part III

Promotion of Officers already in Government Service

23.

(a)

The Chief Secretary to the State Government shall in each year communicate to the Board of Revenue the number of vacancies in the Bihar Civil Service (Executive Branch) and the Bihar Junior Civil Service that may be fixed by the Governor to be filled up from officers already in Government Service. The Board of Revenue shall consult the Commissioners of Divisions. After the Commissioners of Divisions have sent up their recommendations to the Board of Revenue for promotion to the Bihar Civil Service (Executive Branch) and the Bihar Junior Civil Service, these recommendations along with any others which the Board may have received shall be considered by a Selection Committee consisting of the Member, Board of Revenue, as President and the Additional Member, Board of Revenue, if there be one, the Food Production and Development Commissioner, if there be one and all the Commissioners of Divisions, as Members. The officers nominated by the Selection Committee shall be arranged in order of preference : Provided that where more than one officer is nominated for promotion from the same service, their names shall be arranged in order of their position inter se in the service to which they belong.

(b)

The Board of Revenue shall send all papers relating to the candidates nominated by the Selection Committee direct to the Commission and shall at the same time submit a list of such candidates to the Governor.

Note. - Persons who hold posts in Government service either in a substantive capacity or otherwise are eligible for appointment to the Junior Civil Service by promotion or transfer in accordance with these Rules.

Supplementary Instructions

(i)

The appointment to the Bihar Civil Service (Executive Branch) by promotion of any officer other than a Sub-Deputy Collector is not ordinarily desirable and no such appointments will be made save for reasons of an exceptional kind, and on the express recommendation of the Head of the Department in which the officer is serving and of the Board of Revenue.

A recommendation made by a Head of Department should be addressed to the Board and, unless supported by the Board, will not be submitted to the Public Service Commission or to Government. Applications for such appointments received otherwise than through the Board will be returned to the applicants.

(ii)

No Sub-Deputy Collector is eligible for promotion unless he has passed the departmental examinations in law and language by the higher standard and in accounts [and development.]

[Added by Notification No. III/RI 40/560-A-8052 dated 10.6.1960.]

(iii)

The nominees of the Board for promotion to the Bihar Junior Civil Service need not be graduates, but should be men of sufficient education to be able to pass the departmental examination and thus qualify themselves for the work of a Sub-Deputy Collector (Such officers will be eligible for promotion only if they are recommended after a personal interview both by the Board of Revenue and the Public Service Commission).

24.

The Commission shall advise the Governor in respect of each candidate nominated whether his qualifications are sufficient and whether his record proves him to have requisite character and suitability for the service to which it is proposed to appoint him.

25.

The final selection of officers to be promoted shall be made by the Governor after considering the recommendations made by the Commission under Rule 24.

Supplementary Instructions

Officers finally selected, under Rule 25, for promotion to the Bihar Civil Service (Executive Branch), will not, if already in permanent Government service, be required to undergo further medical examination.

General

No recommendations except those invited in the form of application will be taken into consideration. Any attempt on the part of a candidate to enlist support for his application through person of influence (or in any other manner) will disqualify him for appointment.

[Every Sub-Deputy Collector on first appointment on probation will be required to execute a bond in the form prescribed in Appendix 'E' with two good and sufficient sureties binding himself and his sureties jointly and severally to refund to Government the amounts received by him as pay and allowances during the period of probation, if during that period or within five years thereafter he voluntarily resigns or otherwise quits the service on any ground other than that of health, certified by a duly constituted Medical Board. In case of a promoted officer who holds any substantive post elsewhere, the amount of refund will be limited to extra amounts drawn by him by virtue of his appointment as a Sub-Deputy Collector.]

[Added by Notification No. A-106 dated 5.1.1957.]

26A.

[

[Added New Rule, 26-A vide G.S.R. 9, dated 28th February, 1978, published in Bihar Gazette, of India, Extraordinary, dated March 1, 1978.]

(1)

Promotion to Junior Selection Grade shall be made from amongst the officers whose names find place in the Sub-divisional Officers' list mentioned in sub-rule (2) of this Rule, in the order in which the names of officers are arranged in the said list, so however, that due representation in promotion to Junior Selection Grade is accorded to the officers belonging to Scheduled Castes and Scheduled Tribes in accordance with the reservation rules in force.

(2)

(i)

A list of officers fit to hold charge of a sub-division shall be prepared in each year by a Departmental Promotion Committee to be constituted in terms of the Government Resolution contained in Personnel Department's Memo No. 22576, dated the 27th November, 1976.

(ii)

The selection shall be made on the basis of merit to be assessed from the up-to-date service records with due regard for seniority, from amongst the officers of the Bihar Civil Service (Executive Branch) who have completed not less than 5 years of continuous service in the Bihar Civil Service (Executive Branch) on the 1st day of January of the year in which the list is prepared. The above period of service shall be reduced by one year in the case of officers belonging to Scheduled Castes and Scheduled Tribes, if adequate number of officers of those castes with prescribed minimum length of service are not available in the required proportion for the purposes of sub-rule (i):

Provided that those officers who were included in the list in force immediately before the date of the meeting of the Departmental Promotion Committees, shall on inclusion in the fresh list, be placed over all the officers selected for the first time.

(iii)

(a)

Recommendations made by the Departmental Promotion Committee in which the Public Service Commission is associated, shall be taken as the recommendation of the Commission.

(b)

In cases where consultation with the Public Service Commission is compulsory, under Article 320 of the Constitution of India, or any other law or Rule framed by the Government of Bihar or the Government of India, or where the Chairman or a Member of the Commission presiding over the Departmental Promotion Committee desires a particular case to be considered by the Commission as a whole, the list of officers thus prepared shall be forwarded to the Commission, alongwith their up-to-date service records. Likewise such service records of those officers, who are proposed to be passed over, shall also be sent to the Commission. The Commission shall, in such cases, advise the Governor in respect of suitability of each officer for inclusion in the list.

(iv)

The final selection of officers for inclusion in the list shall be made by the Governor after taking into consideration the recommendations of the Departmental Promotion Committee and/ or the advise of the Commission, as the case may be.]

27.

[

[Added New Rule, 27 vide G.S.R. 9, dated 28th February, 1978, published in Bihar Gazette, of India, Extraordinary, dated March 1, 1978.]

(1)

Promotion to Senior Selection Grade shall be made from amongst the officers whose names find place in the select list mentioned in sub-rule (2) of this Rule in the order in which the names of officers are arranged in the said list, so however, that due representation in promotion to Senior Selection Grade is accorded to the officers belonging to Scheduled Castes and Tribes in accordance with the reservation rules in force.

(2)

(i)

The Select List shall be prepared by the Departmental Promotion Committee constituted under Rule 26-A (2)(i) in each year from amongst members of the Bihar Civil Service (Executive Branch) who have completed not less than eight years of continuous service on the 1st day of January of the year in which such list is prepared and whose names are included in the list of officers in the Junior Selection Grade, referred to in Rule 26-A.

The above period of service shall be reduced by one year in the case of officers belonging to Scheduled Castes and Scheduled Tribes if adequate number of officers of those castes with prescribed minimum length of service are not available in the required proportion for the purposes of sub-rule (1).

(ii)

The selection shall be made primarily on merit to be assessed from the up-to-date service records.

(iii)

The Departmental Promotion Committee shall arrange the names of officers thus selected in order of their inter-se-seniority.

(iv)

(a)

Recommendation made by the Departmental Committee in which the Public Service Commission is associated shall be taken as the recommendation of the Commission.

(b)

In cases where consultation with the Commission is compulsory, under Article 320 of the Constitution of India or any other law or rule framed by the Government of Bihar or the Government of India, or where the Chairman or a Member of the Commission presiding over the Departmental Promotion Committee desires a case to be considered by the Commission as a whole, the list of officers thus prepared shall be forwarded to the Commission, along with their up-to-date service records. Up-to-date service records of those officers, who are proposed to be passed over, shall also be sent to the Commission. The Commission shall, in such cases, advise the Governor in respect of the suitability of each officer for inclusion in the list.

(v)

The final selection of officers for inclusion in the Select List shall be made by the Governor after taking into consideration the recommendation of the Departmental Promotion Committee and/or the advice of the Commission, as the case may be].

27A.

[

[Added New Rule, 27-A vide G.S.R. 9, dated 28th February, 1978, published in Bihar Gazette, of India, Extraordinary, dated March 1, 1978.]

(1)

Promotion to the post of Senior Additional District Magistrate's scale in the Bihar Civil Service (Executive Branch) shall be made from amongst the officers whose names find place in the Select List mentioned in sub-rule (2) below in the order in which the names of officers are arranged in the said list so however, that due representation in promotions to Senior A.D.M.'s scale is accorded to the officers belonging to Scheduled Castes and Scheduled Tribes in accordance with the reservation rules in force.

(2)

(i)

The Select List shall be prepared by the Departmental Promotion Committee constituted under Rule 26-A (2) (i) in each year from amongst the members of the Senior Selection Grade referred to under Rule 27 and who have completed not less than four years of continuous service in Senior Selection Grade on the 1st day of January of the year in which such list is prepared.

The above period of service shall be reduced by one year in the case of officers belonging to Scheduled Castes and Scheduled Tribes if adequate number of officers of those castes with prescribed minimum length of service are not available in the required proportion for the purposes of sub-rule (1).

(ii)

The selection shall be made primarily on merit to be assessed from the up-to-date service records.

(iii)

The Departmental Promotion Committee shall arrange the names of officers thus selected in order of their inter-se-seniority.

(iv)

(a)

Recommendation made by the Departmental Committee in which the Public Service Commission is associated shall be taken as the recommendation of the Commission.

(b)

In case where consultation with the Commission is compulsory under Article 320 of the Constitution of India, or any other law or rule framed by the Government of Bihar or the Government of India, or where the Chairman or a Member of the Commission presiding over the Departmental Promotion Committee desires a particular case to be considered by the Commission as a whole, the list of officers thus prepared shall be forwarded to the Commission alongwith their up-to-date service records. Likewise, such service records of those officers, who are proposed to be passed over, shall be sent to the Commission. The Commission shall, in such cases, advise the Governor in respect of the suitability of each officer for inclusion in the list.

(v)

The final selection of officers for inclusion in the Select List shall be made by the Governor after taking into consideration the recommendations of the Departmental Promotion Committee and/or the advice of the Commission, as the case may be. [G.S.R. 9, dated 28th February, 1978, published in Bihar Gazette, of India, Extraordinary, dated March 1, 1978.]

Appendix A

List of Scheduled Castes in Bihar

1. The castes, races or tribes, or parts of groups, within, castes or tribes, specified below shall be deemed to be Scheduled Castes in the State of Bihar in the localities specified in relation to them.
 2. No person who professes a religion different from Hinduism shall be deemed to be a member of a Scheduled Caste.
 3. Any reference to a district or other territorial division of the State shall be construed as a reference to that district or other territorial division as existing on the 26th January, 1950.
- I. Throughout the State of Bihar.

1.
Bauri
 12.
Kanjari.
 2.
Bantar
 13.
Kurariar
 3.
Bhogta
 14.
Lalbegi.
 4.
Chamar
 15.
Mochi
 5.
Chaupal
 16.
Musahar
 6.
Dhobi
 17.
Nat
 7.
Dome
 18.
Pan
 8.
Dusadh, including Dhari or Dharhi
 19.
Pasi
 9.
Ghasi
 20.
Rajwar
 10.
Halalkhor
 21.
Turi.
 11.
Hari, including Mehtar.
- II. In Patna and Tirhut divisions and the districts of Munger, Bhagalpur, Purnea and Palamau - Bhumij.
- III. In Patna, Shahbad, Gaya and Palamau Districts-Bhuiya.
- IV. In Shahabad District-Debgar.
- List of Scheduled Tribes in Bihar
- I. Throughout the State of Bihar.
1.
Asur
 15.
Kharwar

2.
Baiga
16.
Khond
3.
Bathudi
17.
Kisan
4.
Bedia
18.
Kora
5.
Binjhia
19.
Korwa
6.
Birhor
20.
Lohara
7.
Birjia
21.
Mahdli
8.
Chero
22.
Mai Paharia
9.
Chik Aaraik
23.
Munda
10.
Gond
24.
Oraon
11.
Goriat
25.
Parhaiya
12.
Ho
26.
Santal
13.
Karmali
27.
Sauria Parharia
14.
Kharia
- 28.

Savar

2. In the districts of Ranchi, Singhbhum, Hazaribagh, Santal Parganas and Manbhum - Bhumij.

Note. - Any reference to a district or other territorial division of the State shall be construed as a reference to the district or other territorial division as existing on the 26th January, 1950.

Appendix B

The term "Political Sufferer" defined for purposes of recruitment to services and posts under Government (Vide Circular No. 237-A (124)/50/C-1447, dated the 26th January, 1951 and No. 237-A (124)/50/C-6480, dated the 23rd May, 1951.

A "Political Sufferer" means up to and including the 31st December, 1951, unless otherwise specified, a person who took part in the political movement which started on the 9th August, 1942; and

(1)

who was injured as a direct result of his participation in the movement or as a direct consequence of any action on the part of Government officials; or

(2)

who was tried and sentenced to imprisonment or fine for any offence connected with the movement; or

(3)

who was detained without trial for three months or more; or

(4)

who was under trial for six months or more, even though the cases ended in discharge or acquittal; or

(5)

who was proclaimed as an offender in connection with the movement, but absconded; or

(6)

whose properties were attached even though restored subsequently; or

(7)

whose properties were damaged or destroyed on account of his participation in the movement; or

(8)

whose studies were interrupted resulting in loss of one or more academic years on account of such participation; or

(9)

sons and daughters of those who lost their lives or were incapacitated as a direct result of their participation in the movement or as a direct consequence of any action on the part of Government officials during the movement; or

(10)

the son or son-in-law of a political sufferer on whom that political sufferer and his family are dependent for their maintenance.

1. Special cases which would not be covered by the above definition should be referred to the Secretary to the Government of Bihar in the Political Department, Patna, for orders with a full statement of the facts. A person who wishes to claim any of the concessions allowed under this order should obtain from the District Magistrate of the district in which he normally resides, a certificate to the effect that he was a Political Sufferer within the meaning of this order.

2. No application for concession under the orders quoted above will be entertained by the Bihar Public Service Commission unless accompanied by the District Magistrate's certificate.

Appendix C

Instructions Governing Refund of Admission and Examination Fees

Application fee will not ordinarily be refunded. If however, for any reason a candidate is unable to sit at the examination, half of the examination fee may be refunded on application to the Secretary to the Commission:

Provided that the Secretary to the Commission may sanction refund of:-

(i)

90 per cent of the fees paid when a candidate after paying the fees does not submit an application.

(ii)

whenever of the application and/or examination fee paid, as the case may be, where an alteration is made in the terms of advertisement or in the conditions of recruitment so that the candidate who would otherwise have been eligible, becomes ineligible, due to such alteration; and

(iii)

whole of the application and/or examination fee paid, as the case may be, if the vacancies advertised are decided by

Government to be abolished or kept in abeyance, before or after the candidates are interviewed.

Appendix D

[Bihar Public Service Commission, 15 Bailey Road, Patna]

Syllabus for the Combined Competitive Examination

(The Syllabus is liable to slight modification)

Questions in all non-language subjects may be answered either in English or in Hindi (Devnagri script)

The following will be the subjects for examination; each subject will carry the marks shown against it-

Compulsory

Subject

Marks.

1.

General English

150

2.

General Knowledge (including current affairs)

150

3.

Elementary General Science

100

4.

General Hindi

50

Optional

(Candidates must take three and not more than three subjects, but not more than two from any one of the groups, A, B, C or D).

Group A

5.

Hindi Language and Literature

200

6.

Sanskrit Language and Literature

200

7.

Urdu Language and Literature

200

8.

Persian Language and Literature

200

9.

Arabic Language and Literature

200

10.

English Language and Literature

200

10. [A]

[Added by Notification no. III/RI-4044/60-A-8664, dated 22.6.1960.]

Pali Language and Literature

200

Group B

11.

Indian History and Culture (including Modern and Medieval

India)	
200	
12.	
World History	
200	
13.	
Geography	
200	
14.	
General Economics (including Public Finance)	
200	
15.	
Political Science	
200	
16.	
Philosophy (including Ethics and comparative study of religions)	
200	
17.	
Psychology	
200	
18.	
Sociology (including Anthropology)	
200	
19.	
Labour and Social Welfare	
200	
Group C	
20.	
Public Administration	
200	
21.	
International law, Jurisprudence and Constitutional Law (with special reference to the development of the English and Indian Constitution)	
200	
22.	
Hindu Law, Law of Transfer, Evidence Act, Procedure Law and Indian Penal Code.	
200	
Group D	
23.	
[Mathematics substituted by G.S.R. 45, dated the 5th May, 1975, published in Bihar Gazette, Part II, dated 7.5.75 at page 600]	
[23-A.]	
[Added 23A & 23B with standard and syllabus for Pure Mathematics and Applied Mathematics vide G.S.R. 45, dated the 5th May, 1975, published in Bihar Gazette, Part II, dated 7.5.75.]	
Pure Mathematics	
200	
[23-B.]	
[Added 23A & 23B with standard and syllabus for Pure Mathematics and Applied Mathematics vide G.S.R. 45, dated the	

5th May, 1975, published in Bihar Gazette, Part II, dated 7.5.75.]

Applied Mathematics

200

and its Standard and Syllabus will be substituted as below:-

Standard and Syllabus for Pure Mathematics

(i)

Set theory: Sets, union, intersection, difference and complementation properties. De Morgan's rule and distributive laws, cartesian product of sets, Mappings, relations and concepts of binary operations, indexed family of sets. Equivalence relation and partition of sets, countable and uncountable sets, partially and totally ordered sets.

(ii)

Topology : Metric space-open sets, Closed sets, Closure, limiting point and convergence in metric spaces. Complete metric spaces. Notion of connectedness, compactness and their invariance under continuous mappings.

(iii)

Algebra : Concepts of semi-group, sub-group, group cosets, order of an element. Lagrange's theorem, cyclic group, permutation, group Homomorphism of groups, Definitions and illustrations offering integral domain and field. Vector space of finite dimensions. Matrices, kinds of matrices, associated matrices algebra of matrices Cayley-Hamilton theorem, Determinants, Rank of matrices. Solution of simultaneous linear equations.

(iv)

Infinite sequence and series: Limiting point of a set Bolzano-Weierstrass theorem. Sequences and limits, Cauchy's criterion for convergence. Infinite series, comparison and ratio tests. Gauss's test, condensation test.

Alternating series. Absolute convergence, derangement of series product of series.

(v)

Analysis : Construction of Real number by Dedekind's section or by any other method limits and continuity of a function of one real variable, derivatives and successive derivatives. Properties of continuous functions, characterisation of discontinuities, mean value theorem, Taylor's and Maclaurine's theorem with Lagrange's and Cauchy's forms of remainders. Evaluation of indeterminate forms, Plane curves : tangents and normals, curvature, contact of curves, envelopes, Partial differentiation and differentiability of a function of more than one variable, Maxima and Minima of functions, Standard methods of integration. Riemann's definition of definite integral of continuous functions, Fundamental theorem of integral of continuous functions. Fun. Fundamental theorem of integral of continuous functions. Fundamental theorem of integral Calculus. First and Second mean value theorems of Integral Calculus. Rectification and quadrature of curves, Surface and volumes of solids.

(vi)

Differential equations : Formation of ordinary differential equations, differential equations of first order, linear differential equations of higher order with constant co-efficients. Exact differential questions and equations admitting integrating factors. Second order equations with variable co-efficients (solution in series excluded).

(vii-a) Analytical geometry of two dimensions : 'Straight line circle, ellipse, parabola, hyperbola. Reduction of the second degree equation to a standard form confocal conics, polar equation of conics.

(vii-b) Analytical geometry of three dimensions: Plane, straight line, Equations of spheres, cones, cylinders, paraboloid, ellipsoid, and hyperboloid in standard form and their tangent and normal properties.

Standard and Syllabus for Applied Mathematics

(i)

Vector Analysis : Scalars and vectors, Vector addition, Scalar vector multiplication. Differentiation and integration of vector functions of a scalar, Gradient divergence and curl in cartesian cylindrical and spherical co-ordinates. Higher order derivatives, vector identities and vector equations. Gauss's Green's and Stoke's theorem.

(ii)

Statics : Plane statics, equilibrium of system of particles, reduction of a general plane force system, Work and potential energy. Centre of mass and centre of gravity. Common catenary, Principle of Virtual work. Stability of equilibrium of forces in three dimensions.

(iii)

Attraction and potential : Attraction and potential of rods, rectangular and circular discs, spherical shells, spheres. Equipotential surfaces and their properties, properties of potentials. Laplace's and Poisson's equations.

(iv)

Dynamics : Velocity vector, velocities and accelerations along the axes of co ordinates tangential and normal, radial and transverse. Fundamental laws of Newtonian Mechanics. Plane dynamics, principles of angular momentum and energy for a particle and for system, motion of mass centre, motion relative to mass centre. Principle of energy, D, Alembet's Principle. Motion in a plane, Projectiles, harmonic oscillators, orbits under central forces. Kepler's laws and planetary orbits. Two dimensional motion of a rigid body rotating about a fixed axis, moments and products of inertia, Compound pendulum.

(v)

Hydrostatics : Nature and properties of fluid pressure. Pressure of heavy fluids. Equilibrium of fluids under given system of forces. Centre of pressure. Thrusts on curved surfaces. Equilibrium of floating bodies, stability of equilibrium. Pressure of gases and problems relating to atmosphere.]

Old Rule given under as :-

24.

Physics

200

25.

Chemistry

200

26.

Botany (including Economic Botany)

200

27.

Geology

200

28.

Zoology

200

29.

Accounts

200

30.

Statistics

200

31.

Agriculture

200

1. Every candidate must offer for all services, all subjects mentioned in the Compulsory group. From the subjects in the Optional, candidate must take three subjects, but not more than two from any one group.

2. General Economics, including Public Finance or Accounts will be Compulsory subject for candidates for the Bihar Finance Service (Senior Branch) and the Bihar Finance Service (Junior Branch).

3. Sociology or Psychology will be a compulsory subject for the Bihar Jail Service.

4. Indian History and Culture will include three groups each carrying 100 marks, and a candidate can take any two up to 200 marks.

5. The paper on "Accounts" will include three divisions and a candidate can offer any two up to 200 marks

6. The number of candidates to be admitted to the written examination shall not exceed the limit as may be fixed by the Commission from time to time. If the number of candidates exceeds the limit fixed the Commission shall make a preliminary selection of candidates to be admitted to the written examination and weed out those who are considered unsuitable :

Provided that candidates with Honour's or Master's degree who have fetched 50 per cent or more of the aggregate marks in the subjects for the Honour's or the Master's degree shall not be excluded from taking the written examination :

Provided further that no member of the Scheduled Castes and Scheduled Tribes, who is eligible under the Rules, shall

be excluded from appearing at the written examination.

7. There shall be one paper in each of the Compulsory, and Optional subjects. All papers, excepting viva voce, shall be of three hours duration. There is no time-limit for viva voce test. The Commission shall summon such candidates for a viva voce test as qualify themselves at the written examination. Viva voce examination shall carry a maximum of 200 marks for all services except the Bihar Police Service. The maximum viva voce marks for the Bihar Police Service shall be 250. The Commission has the discretion to fix the qualifying marks by notification in advance in any or all of the subjects for examination.

8. If a candidate's handwriting is not easily legible, a deduction to the extent of 5 per cent, will be made on this account from the total marks otherwise accruing to him/ her.

9. In all subjects of the examination candidates will be required to show a sound, and not merely superficial knowledge of the subjects. The power of an orderly, effective and exact expression, with the economy of words will also be expected of the candidates.

10. Success in examination confers no right for appointment unless Government are satisfied, after such inquiry as may be considered necessary, that the successful candidate is suitable in all respects for appointment to the Public Service.

11. The Commission reserve the right to recommend a successful candidate for any of the service or posts which he/ she has offered himself/ herself if considered suitable.

Standard and Syllabus of the Examination

Note. - The standard of optional papers will be approximately that of an Honour's Degree Examination of the Patna University which is two years course.

1. General English. - Questions will be set to test the understanding of and the power to write English. A passage or passages will usually be set for summary or precis. Questions will include letter writing on given subjects.

2. General Knowledge (including knowledge of current events). - The paper will also include questions of Indian History, Culture and Geography of a nature, which candidates should be able to answer without special study.

3. Elementary General Science. - A paper of questions to test such matter of every day observation and experience in their scientific aspects as may be expected of an educated person, who has not made a special study of any scientific subject.

4. General Hindi. - The paper will be of a general character to test a candidate's ability to understand and write Hindi grammatically and correctly. Candidates will be asked to write an essay or to give a descriptive account of something. A prose passage will also be set for summary or precis with the object of testing comprehension of expression.

5. Viva voce. - The candidates will be interviewed by the Commission who will have before them a record of his/her career. He/She will be asked questions on matters of general interest. The object of the interview is to assess his/her suitability for the service for which he/she is entered, and in framing their assessment the Commission will attach particular importance to his/her intelligence and alertness, his/ her vigour and strength and his/her potential qualities of leadership. The examination will be on matters of general interest, not on matters of academic interest.

The marks obtained in viva voce will be added to the marks obtained in written papers and the candidate's place will depend on the aggregate of both.

6. Hindi Language and Literature. - Candidates will be expected to show a knowledge of the principal classical authors. Evidence of first-hand reading will be required. The paper will include questions on Grammar, Philology, Social and Political History and literary criticism. Answer should be in Devnagri script.

7. Sanskrit Language and Literature. - (a) Translation from Sanskrit into English and from English into Sanskrit; (b) Language, Literature and Grammar.

Questions may be set to draw out what a candidate knows rather than to test his/her knowledge. It is not expected that he/she should be an expert or a specialist in any branch of Sanskrit literature, but he/she should have a grasp of both the classical language and literature, and a general knowledge of the history of literature-classical period only.

He/she should have a general knowledge of Sanskrit Grammar. This knowledge will be tested not by asking him/her to quote rules, but by their application to language. He/she will be required to translate an essay passage or passages into English from classical Sanskrit, to write an essay in Sanskrit, to summarise a given passage in English or Sanskrit and to translate into either language.

Answers required to be written in Sanskrit must be written in Devnagri script.

[7-A. Pali Language and Literature-

(a)

Translation from Pali into English, from English into Pali;

(b)

Pali Grammar and Composition ;

(c)

Pali Language and Literature.]

8. Urdu Language and Literature. - The candidates are expected to show an up-to-date general knowledge of the history of Urdu language and literature of modern tendencies of its development and be able to answer critical question, regarding some knowledge of Prosody, Philology and Rhetoric.

9. Persian Language and Literature. - (a) Translation from Persian into English and from English into Persian; (b) Language, Literature and Grammar.

Questions may be set to draw out what a candidate knows rather than to test his/her knowledge. It is not expected that he/she should be an expert or a specialist in any branch of Persian Literature, but he/she should have a grasp of both the classical language and literature and a general knowledge of the history of Persian Literature-classical period only. He/she should have a general knowledge of Persian Grammar/including elements of Persian Prosody and Rhetoric. This knowledge will be tested not by asking him/her to quote rules but by their application to the language, he/she will be required to translate essay passage or passages into English from classical Persian, to write an essay in Persian, to summarise a given essay in Persian, and to translate from English into Persian and from Persian into English.

10. Arabic Language and Literature. - (a) Translation from Arabic into English and from English into Arabic; (b) Language, Literature and Grammar.

Question may be set to draw out what a candidate knows rather than to test his/her knowledge. It is not expected that he/she should be an expert or a specialist in any branch of Arabic Literature, but he/she should have a grasp of both the classical language and literature and general knowledge of the history of Arabic literature-classical period only.

He/she should have a general knowledge of Arabic Grammar including the elements of Arabic prosody and Rhetoric. This knowledge will be tested not by asking him/her to quote rules but by their application to language. He/she will be required to translate an essay passage or passages into English from classical Arabic, to write an essay in Arabic, to summarise a given passage in English or Arabic and translate into either language.

11. English language and Literature. - Candidates will be expected to show a general knowledge of the History of English literature from the time of Spenser to 1910 with special reference to the works of the following authors- Shakespeare, Milton, Pope, Johnson, Dickens, Wordsworth, Keats, Tennyson, Hardy, and Bernard Shaw.

Evidence of first-hand reading will be required. The paper will also include question on literary criticism.

12. Indian History and Culture. - This paper will include the following three groups and candidates can take any two only- (a)

Ancient Indian History and culture up to 1,000 A.D.

100

(b)

Medieval India-1000-1707 A.D.

100

(c)

Modern India-1907-1947 A.D.

100

13. Ancient Indian History and Culture. - The Vedic Age, the Mauryan Age and administration, foreign Invasions and their after effects, the age and culture of Guptas, Hun invasions, Harshvardhana and his time, kingdoms in northern India during 700 to 1200.

(The subjects may be studied with the help of following books :-

Roy Chaudhari - Political History of Ancient India.

Tripathi - Ancient History of India.

History of India, 1000-1707 A.D.

(1)

The Muslim conquest of India.

(2)

The Delhi Sultanate-its establishment, growth and disruption.

(3)

Independent kingdoms on disintegration of the sultanate.

(4)

Civilisation during Turko-Afghan period-Government; social and economic conditions; growth of an Indo-Muslim culture (religion, art and architecture, literature and education).

(5)

Political conditions in India in 1526.

(6)

Beginning of the Mughal Empire (Baber and Humayun).

(7)

Afghan revival under Sher Shah and the Suris.

(8)

From Akbar to Aurangzeb : Mughal territorial expansion, Mughal policy towards the N.W. Frontier and Central Asia, the Deccan, the Rajputs, Sikhs and other nationalities, the Marathas and Shivaji's work.

(9)

Civilisation during Mughal rule, System of Government, Civil and Military, Social and Economic conditions, foreign traveller's accounts; religious history and religious policy of Mughal Emperors, art and architecture, literature and education.

History of India, 1700-1947 A.D.

(1)

European Trading nations in India, Anglo-French conflicts, growth of British political supremacy in Bengal till 1765.

(2)

Expansion of the British dominion in India in middle of the 19th century and foreign policy and relations of the E.I. Co.

(3)

Growth of Indo-British administration from Warren Hasting to Dalhousie, Charter Acts and transformation in the position of the E.I. Co.

(4)

Education and Social Reforms till 1856.

(5)

The Movement of 1857-59.

(6)

Administrative and constitutional development in India.

(7)

Foreign policy and relation of the Government of India.

(8)

History of Indian Nationalism and Independence.

(9)

Indian States.

(10)

Education, Social and Religious reforms.

(11)

General Economic condition.

(12)

World History. - (General Knowledge) from 1789-1939.

(13)

Geography. - The physical basis of Geography. Elements of Economic Geography.

Regional and Economic Geography of Asia with a detailed study of India including Pakistan.

Candidates will be required to show intimate knowledge of Indian Geography.

14. General Economics. - Candidates will be expected to have a knowledge of economic theory and should be prepared both to illustrate theory by fact and to analyse facts by the help of theory. Questions may be set on the theory of development of economic thought and Public Finance.

15. Political Science. - Candidates will be expected to show a knowledge of political theory and its history as well as of Political Organisations (including Public Administration and Local Government.) Candidates will be expected to have knowledge also of the origin and development of existing Institutions and of the Constitution of India.

16. Philosophy. - Philosophy including Metaphysics, Theory of Knowledge, Ethics and Philosophy of Religion, a general acquaintance with the main system of Indian Philosophy will be expected.

17. Psychology. - Candidates will be expected to show a knowledge of psychological principles and their applications. Questions will also be set on the structure and functions of Group morale-leadership-public opinion and propaganda tensions. Personal selection and Psychology of management and administration.

18. Sociology (including Anthrology)-

(a)

Factors in the Social Life of man;

(b)

Human Nature. - Heredity and Personality; Group and Personality and Personality Disorganisations.

(c)

Culture. - The Role of Culture;The contribution of Biological Factors. The influence of Geographical Environment and Culture and Personality;

(d)

The major Forms of Social Structure. - Types of Social Group, in social life. The Primary Group, Crowds and Public, Caste and Class; The Family; Family problems of today and Associations and interests; Prestige and Authority:

(e)

Social Institutions. - Organisation of societies, organisation of economic activities in primitive and peasant communities, social control and authority systems in States and Stateless societies; concept of sanction, relation of law to custom and morality; Religion, ritual, magic, totem and taboo; interrelationship of Institutions.

(f)

Indian tribal populations and social change. - A general idea of the tribal populations of India and the distribution of the various racial types and of their characteristics. Concept of the society as a process; the patterns of social change; the biological, technical and cultural factors of social change to be studied with particular reference to the Indian tribes.

(g)

Social Evolution and Social Progress. - Misleading Trials in Social Evolution; General view of Social Evolution. The place of the concept of progress in Sociology, and the Interpretation of Social change from primitive to civilized society.

(h)

Media of Mass Communication. - Propaganda and Public Opinion.

19. Labour and Social Welfare. - (a) History and principles of Labour and Social Legislation in England and India. Particular enactments like the Factories Act, 1948, Minimum Wages Act, 1948, Employees' State Insurance Act, 1948, Industrial Disputes Act, 1947, Trade Unions Act, 1926 and Maternity Benefit Act of Bihar, 1947, [*Now Central Act.]

(b)

Problems and principles of Social Administration; machinery for social service; problems arising out of poverty, sickness, incapacity, accident, old age and unemployment with special reference to India, their causes and remedies; Indian social customs and problems arising from them, Indian standard of living- factors determining-planning-economic and social piecemeal reforms.

20. Public Administration. - The modern State and Pubic Administration, Relations of administration with the Legislature, the Executive and the Judiciary. Problems of organisation of the Administrator, Branch as a whole of departments and of operating services. Advisory Councils, Tools and administration, problems of personal, material and finance, Administrative Law, Public Relations.

21. International Law, Jurisprudence and Constitutional Law. -

(a)

International Law. - Public International Law-"History of International Law of Belligerents and Neutrals in War only".

(b)

Jurisprudence. - Holland's Jurisprudence-Parts I and II.

(c)

Constitutional Law. -

(i)

Constitutional Law of India, 1950 (Parts I and XI).

(ii)

British Constitutional Law, Conventions; Limitations on the Sovereignty of Parliament; Rule of Law; Writs.

22. Hindu Law, Law of Transfer, Evidence Act, Procedure Law and Indian Penal Code -

(a)

Hindu Law. - Source of Hindu law, General Principles of Inheritance, Joint Family, Points of difference between the Mitakshara and Dayabhaga; Hindu Widow's Estate and Stridhan.

(b)

Law of Transfer. - Definition of Transfer of Property, Gifts to unborn persons (Section 13), Rule against perpetuity (Section 14), Nature of vested contingent interest (Sections 19 and 21), Election (Section 35), Law of Lis Pendens (Section 52), Different kinds of Mortgages (Section 58).

(c)

Evidence Act. - Sections 1 to 32.

(d)

Procedure Law. - Criminal Procedure.

Part I ? Section 4, Parts II, VI omitting Chapters XXIII, XXVII, XXVIII, XXXIX, Part IX, Chapters XXXIX and XLIV.

(e)

Civil Procedure. - Sections 1 to 151.

(f)

Indian Penal Code. - Chapters I to VII, Chapter VIII omitting Sections 143, 147, 160 : Chapter IX omitting Section 164 ; Chapter IX-A omitting Sections 171-E; 171-F; Chapter X whole; Chapter XI omitting Sections 193 and 216-A; Chapter XII whole; Chapter XIII whole ; Chapter XIV omitting Section 290 : Chapter XV whole; Chapter XVI omitting Sections 302, 303, 304, 311, 323, 325, 341, 342, 352, 363, 376, Chapter XVII omitting Sections 379, 384, 392, 395, 400, 401, 406, 417, 419, 426, 438, 439, 447, 448, 453, 462; Chapter XVIII omitting Sections 464, 482, 488. Chapter XIX whole ; Chapter XX whole, Chapter XXI omitting Section 500, Chapter XXII omitting Section 506, Chapter XXIII whole,

23. Mathematics. - Mathematics will include :

(a)

Algebra. - Determinants, theory of equations (volume 8 of Burnside) and Panton, simple continued fractions, indeterminate equations of the first degree, recurring series and inequalities.

(b)

Geometry. - Analytical Geometry of two dimensions. Analytical Geometry of three dimensions up to Sections of Central conicoids.

(c)

Elementary Analysis and Trigonometry. - Sequences and limits. Definition of an irrational number, Convergence of series by comparison and ratio tests, Absolute convergence, Binomial series, Exponential theorem, Series of trigonometric and hyperbolic functions, Logarithmic series, Complex number, De-Moivre's theorem, Summation of series. Properties of triangles and quadrilateral, Elements of Spherical Trigonometry and properties of spherical triangles.

(d)

Calculus and Differential Equation. - Continuous and discontinuous functions. Differentiation and successive differentiation. Rolle's theorem. Mean value theorem. Taylor's theorem. Partial differentiations. Maxima and Minima. Geometrical applications. Definite and indefinite integrals, application to length of curves, areas, volumes, centroids and moment of inertia. Linear differential equations of the first order. Differential equations of the second order.

(e)

Mechanics. - Dynamics of particle including motion in a plane. Motion under central forces are planetary orbits. Motion on plane curve. Motion of rigid body about an axis. Compound pendulum.

(f)

Statics. - Equilibrium under co-planar forces. Friction Equilibrium on a plane, curve, principle of virtual work, Stability Equilibrium of inelastic strings, Hook's law, Elementary vector algebra and its application to mechanical problems.

(g)

Hydrostatics. - Fluid pressure, thrusts on surfaces, centre of pressure, equilibrium and stability of floating bodies. Rotating fluids, Gas laws, Atmospheric pressure.

(h)

Astronomy. - The celestial sphere; Transit instrument, Equation of time, planetary motion, Refraction, parallax. Precession and mutation. Lunar and Solar eclipse.

Descriptive-Astronomy, planets stars, double stars, Magnitude and spectral glasses, Temperature luminosity law and diameter, Clusters and nebulae.

24. Physics. - The paper will include question on General Physics, Heats, Light, Sounds, Electricity and Magnetism.

25. Chemistry. - The paper will include question on General (including Physical) Chemistry, Inorganic Chemistry and Organic Chemistry.

26.

Botany. - An advanced knowledge of the main groups of the vegetable kingdom, (prescribed for the Hons, course) both living and existing, viz.. Algae, Fungi, Bryophyta, Petrodophyta, Gymnosperms and Angiosperms with special reference to the Indian flora.

Anatomy. - Origin and development of plant issues and their distribution from ecological point of view.

Ecology. - Principal types of vegetation of Bihar, their distribution and importance of vegetational study (of Hons, standard).

Physiology. - A knowledge of the important physiological processes of the plant body (of the Hons, standard).

Plant Pathology. - A knowledge of the important diseases of plants caused by Fungi together with the methods of control.

Economy Botany. - A study of the important economic plants (included in the Hons. Course) of India and their distribution.

General Biology. - A study, knowledge of the fundamentals in variation, heredity evolution, cytology, genetics and principles of plant breeding.

27. Geology. - Physiography and Structural Geology, Mineralogy, Economic, Geology and Petrology - Interior of the earth and its constitution; Isostasy; Continental Drift, Earth Movements : Origin of Mountains. Fluvial Cycle. Geological works of snow and ice, Past Glaciation, Marine deposits, Coral reef; types of fold and faults.

A detailed study of the important rock forming minerals and minerals of economic importance. Ore genesis; important economic mineral deposits of India. Rock: Modes of occurrence of igneous rocks. Principles controlling the formation of igneous rocks. Magnetic differentiation, Structures and Textures. Classification of igneous rocks. Description of the more common igneous rocks. Characters of different types of sedimentary rocks. Metamorphism, and the origin of different types of metamorphic rocks. Classification of metamorphic rock. Igneous and metamorphic rock. Classification of metamorphic rocks. Igneous and metamorphic rocks of India.

Stratigraphy and Palaeontology - Detailed morphology of the important groups of invertebrates and study of important genera under each group. Distribution in time of the leading genera. Fossils and organic evolution with special reference to the Mammals. Petrological and palaeontological features of the main geological sub-divisions of India. Correlation of the different formations of India with each other and with the standard stratigraphical scale.

28.

Zoology - (1) Animal cell (including its cytoplasmic inclusion and their functions.). Reproduction (Sexual, asexual and parthenogenesis), Histology of Frog and Rabbit.

(2)

Theories of evolution, Heredity, Cellin in inheritance, History of Zoology, and Eugenics.

(3)

Economic Zoology with special reference to pisciculture, sericulture and Lac culture.

(4)

Geographical and Geological distribution of animals.

(5)

The structure, habit, life-history and classification of the following groups as illustrated by the types indicated against each :-

Protozoa : Amoeba, Entamoeba, Trypanosome, Paramoecium, monocystis and malarial parasite.

Porifera : Different kinds of canal systems, skeleton and development,

Coelenterate : Hydra, Obelia, Aurelia and Coral formation.

Platyhelminthes : Liverfluke and taenia.

Memathelminthes : Ascaris and Filaria.

Echinodermata: Starfish.

Annelida : Pheritima, Neris and Leech.

Arthropoda : Prawn, Cockroach, Mouth parts of Mosquito, House-fly and Sacculina.

Mollusca : Mussel and Pila.

Polyzos : Bugula

Hemichordata: Balanoglossus

Urochordata : Herdmania, Sarpha and Doliolum

Cephalochordata: Branchiostoma (Amphious).

Cyclostemata : Petromyzon (external characters only).

Pisces : Dogfish, A common bony fish and Dipnoi

Amphibia : Frog.

Reptilia : Varanus and Snake (life-history included).

Aves: Pigeon.

Mammalia : Echidna, Kangaroo, Guinea-pig or Rabbit Placentation

29.

Accounts will include the following groups :-

A. Advanced Accounting. Auditing. Cost Accounting and Income Tax-100 marks.

(a)

Advanced Accounting. - The principles of Accountancy and their practical application to all types of trading, commercial, industrial, banking, insurance and investment undertakings. Accounts relating to the flotations, amalgamation, absorption, reconstruction, re-organisation and liquidation of companies, statutory and public utility undertakings, the accounts of educational, scientific, charitable and religious endowments, trust and institutions, provident and superannuation funds : branch accounts, foreign exchange, etc.

Note. - Candidates will be expected to be acquainted with the basic principles. Specialised knowledge of cost accounting will not be required.

(b)

Cost Accounts. - The main principles of cost accounting. The treatment and control of stocks, material, labour, direct and indirect expenses and on cost. Contract cost accounts, process cost accounts, single costing, standard costing, multiple costing and operating costing; Double Entry Cost Accounting; reconciliation of cost accounts with financial accounts.

(c)

Auditing. - The principles and procedure of Auditing and their practical application to all types of trading, commercial, industrial, banking, insurance, public utility and investment undertaking; Rights and Duties of Auditors; Internal Audit Investigations of actual and suspected frauds. Auditor's report, certificates and opinions, Limitations of Audit.

(d)

Income tax. - The main Legal and Accountancy, Principles governing the computation of total world income for purposes of income-tax.

Note. - Special knowledge of Income-tax will not be expected. Candidates will be required to have a sound grasp of the provisions of Section 10 of the Income-tax Act and a working knowledge only of Sections 3 to 4-B, 6 to 15-A and 16 (1) & (a) (b), 16 (2), 17, 18-A, 22, 23 (1) to (3), 26-A, 42, 49-B and 55 to 58 and the connected rules of the [Indian Income-tax Act, 1925]

[Now, Income Tax Act, 1961.]

. Also the Indian Finance Acts of 1946 and subsequent years.

B. Rural Economics with special reference to Bihar and Co-operative in India: Partnership accounts : Receipt and Payment Account and Income and Expenditure Account. Joint Stock Company accounts including amalgamation, absorption and reconstruction. Banking Account-100 marks.

C. Indian Currency and Commercial Banking operation; Partnership account; Receipt and payment account and income and expenditure account, Joint Stock Company accounts including amalgamation, absorption and reconstruction. Banking Account-100 marks.

A candidate can take any two from the above three groups.

30.

Statistics. - Elementary ideas of probability including Baye's hypothesis, expected values, Lagran's and advancing interpolation formulae, derivation of normal curve and some of its fundamental properties. Elementary Theory of Least Square.

Descriptive Statistics. - Tabulation, classification, graphical representation averages (including index numbers in some details), dispersion, symmetry Kurtosis, elementary theory of Attributes and Association, Distribution, function of mean and variance in a normal population, elementary properties of some standard distributions, e.g., Binomial, rectangular Conchy's Personian, Derivations of χ^2 distribution from independent normal variates. Properties of Bivariate normal distributions. Theory of co-relation co-efficient including Personians co-efficient, rank and inter-class correlation co-efficients, with two and three variables only. Concepts of sampling in statistics (including random, purposive and stratified), elementary tests of hypothesis involving the use of t, F χ^2 distribution without formal proofs, elementary idea of analysis of variance and covariance (one way and two way classifications).

Note. - The accounts of Executors and Trustees of the Estates of deceased person, Liquidators, Receivers, Official Assignee, etc. will not be included.

31.

Agriculture

(1)

Introduction. - Its brief history, scope and importance, relation to other industries and sciences; some agricultural statistics of Bihar, such as classification of areas under different crop, irrigated areas, and crops distribution of populations, etc.

(2)

Soils. - Soil and sub-soils texture and structure of soil, soil moisture; soil air; soil temperatures; soil micro-organisms : physical properties of soil.

(3)

Tillage and Farm Implements. - Definition, importance, objects and kinds of tillage, essential differences in tillage in different types of soils, preparation of seed bed; control of weeds.

A study of the indigenous improved and introduced implements in Bihar in respect of assemblage, adjustment, working cost, care and economics of operation.

(4)

Climatology. - Definition and scope; factors and elements of climate; common meteorological instruments and their uses; Weather forecast, relation of climate to the distribution of crops and systems of farming.

(5)

Irrigation, Drainage and Land Development. - Importance of irrigation, Water requirements of crops, hydraulic terminology, detailed study of different sources of Irrigation.

Dry farming, its scope and relation to rainfall; dry farm crops and tillage methods.

Importances of drainage, kinds of drainage, reclamation of acid alkali and kans infested lands or otherwise lying waste; soil conservations, pasture management.

(6)

Manuring. - Fertility of land; principles underlying manuring of crops; detailed study of F.Y. M., compost, green mixturing, oil-cakes and various inorganic fertilizers.

(7)

Principles of crops production. - Crop rotations; crop mixtures ; seed selection ; multiplication and distribution of pure seeds; classification of crops and detailed study of the following crops :-

Paddy, Maize, Wheat, Barley, Linseeds, Gram Arhar, Jute, Cotton, Sugarcane, Tobacoo, Jowar, Berseem, Soyabeen, Turmeric, Onions-Chillies, Potatoes, Sweet Potatoes.

(8)

Farm management. - (1) Different types of farming; lay-out of different types of farms; successful management of farms and maintaining farm accounts.

(9)

Extension service for agricultural and rural development.

Appendix X

Acknowledgement by Government of Meritorious Service of Officers

Circular letter no. 330-67-A.R. dated Ranchi, the 24th April, 1935 from the Government of Bihar and Orissa, Appointment Department

I am directed to say that Government have decided that it is fitting that the services of officers belonging to the Provincial and Subordinate Services in Bihar and Orissa who have meritorious records should be recognised on their retirement by a letter of thanks on behalf of Government. His Excellency the Governor has decided that the following conditions should be observed in the issue of such letter:-

(a)

Officers of all ranks except menials should be entitled to receive a letter of thanks on retirement after consistently meritorious service.

(b)

Service must be of conspicuous merit. The possession of a title should not necessarily qualify nor absence of a title necessarily disqualify.

(c)

The officer should have completed twenty-five year's service.

(d)

The head of the department or office should on the retirement of each officer consider whether he merits a letter of thanks and should submit his recommendation to the proper authority.

(e)

In the case of gazetted officers, His Excellency the Governor will issue the letter of thanks after receiving the recommendations of the Head of the Department and the Member or Minister in-charge of that Department.

(f)

In the case of non-gazetted officers the letter should be issued by the Head of the Department or the Commissioner of the Division.

[Added by Notification No. III/RI. 4044/60-A-8664 dated 22.6.1960.]

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